

Character and Fitness

Amendment Submitted on 10.23.2025

Character and Fitness Application Instructions

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You **MUST** complete an exam application before starting a character and fitness application.

Read the Rules applicable to the Admission to Practice Law in Arizona [Browse - Arizona Court Rules \(westlaw.com\)](#)

Read the [Arizona Supreme Court Committee on Character and Fitness Guidelines](#)

Refer to the [Character and Fitness Application Checklist](#) and gather all information prior to completing your online application. The application must be complete at the time of submission.

Read all the following instructions carefully before proceeding.

Disclosures:

The Committee expects you to spend the time necessary to provide accurate and complete answers. You are required to swear/affirm before a notary public that this document is true and complete in all respects, and you will be held in strict compliance with the declaration.

The Committee is required by Supreme Court Rule to assess your diligence. You must complete the research necessary to answer each question. Failure to strictly comply with the requirements of the Application will reflect negatively upon you, and will result in substantial delay to, or potential denial of, your admission to the practice of law.

In accordance with the Rules of Professional Conduct, an applicant for admission shall not (a) knowingly make a false statement of material fact; or (b) fail to disclose a fact necessary to correct a misapprehension known by the person to have arisen in the matter, or knowingly fail to respond to a lawful demand for information from an admissions or disciplinary authority.

Course on Arizona Law and Multistate Professional Responsibility Examination: An investigation is considered to be open and ongoing until at least such time that applicant completes the required Course on Arizona Law and submits proof of a passing score on the MPRE as established in this jurisdiction. The passing MPRE score must be earned within eight years of the date of application or within the time frame for taking the oath of admission after the successful bar examination. Both are required before the Committee on Character and Fitness is able to make a final determination regarding admission.

Pursuant to Ariz. Sup. Ct. Rule 37(a)(1), an applicant must take the oath of admission and be admitted to practice of law within five years prior to the date when the UBE Score was earned. This means your background investigation must be completed before the date of your exam. If you have not submitted your application at least 6 months prior to your score expiration date, you may not be eligible for admission and no refund is permissible in accordance with the admission rules. If you wish to motion the Court for an extension of the time by which you must be admitted, you will need to file the motion with the Clerk of the Supreme Court and serve a copy on the Committee on Character and Fitness.

The Committee participates in the National Conference of Bar Examiners' national databank which cross-checks applicants to determine if they have filed applications in other jurisdictions.

The Committee independently obtains and reviews credit reports concerning all applicants.

The provision of your social security number is voluntary, pursuant to the Federal Privacy Act of 1974. However, provision of your social security number assists in expediting the character review process. Your social security number will be used for purposes of investigation and verification, to avoid errors of identity which might cause issues and delays in the certification and licensure process. You must notify us in writing, received within five business days of your electronic submission, if you wish to restrict the use of your social security number.

Requirements:

The following information must be provided to Attorney Admissions in order to complete timely processing of your application. You will be prompted to upload some of these documents where applicable in this online application.

- Notarized and signed Declaration
- Notarized and signed Authorization and Release
- Documentation proving lawful status (photocopy of driver's license, passport, etc.) or immigration status
- Photo - A full color passport quality photo of you only; head, neck and shoulders, no hat, hoodie or other item obstructing your head or face. Please review the Arizona Photo Upload Requirements in the FAQs.
- Certified driving history from every state in which a driver's license has been held for the past ten years to current, for the longest period of time offered by the jurisdiction and cannot be an uncertified copy from a third-party vendor.
- If not previously submitted, evidence of a minimum score of 85 on the MPRE taken within 8 years before the successful bar examination or within the time frame for taking the oath of admission (if not forwarded by NCBE).
- Arizona Law Class if not previously completed. For registration information on how to fulfill this requirement, please go to the following link where you will find information allowing you to view video modules from your computer in any location. Your completion of all online modules and an evaluation triggers internal notification of completion to our staff. You are not required to upload or submit a certificate of completion. Register at: *Arizona Law Course Online Registration (azcourts.gov)*

Additional Information Requests and Updates:

During the investigation, you may be asked for additional information or clarification. If this is necessary, the investigation may be significantly prolonged. If you do not respond within thirty days, the investigation will be abandoned until your written response is received.

You are required to advise Attorney Admissions of all changes to your application occurring from the time of filing until your date of admission.

Timing:

There is no precise time period for processing any file, as every applicant's background is unique. The initial investigation will take a minimum of four months, followed by file assessment by members of the Committee.

The investigation is open and ongoing until at least such time that you are successful on the Arizona Uniform Bar Examination. No status will be provided prior to that date, and then only if the Committee has been afforded the time required to complete the initial investigation.

Avoid Common Errors:

Failure to heed the instructions and exact requirements will result in delays in the investigation.

1. Read every question thoroughly and answer it completely.
2. Provide complete and current addresses for all individuals and entities listed.
3. Where required by the question, provide information in chronological order by start date.
4. Personal and legal references may not be listed in any other part of your application.
5. Provide all documents required by the application. If an official agency (for example law enforcement, court, regulatory board, etc.) advises you that the required documents are not available, you must obtain an official written notice from them that specifically states the documents are unavailable and the reason(s) why (for example, the documents are purged after a given number of years).
6. Do not submit an application that is incomplete in any respect and expect to amend it at a later date. The application must be complete at the time of submission.

If there are matters pending at the time you submit your application (for example, a civil matter), you may submit the application and provide updates as they occur.

Tips:

Employment history: If you require assistance to reconstruct your employment history, you may contact the Social Security Administration (telephone 800-772-1213; website ssa.gov) for a report of your earnings history. You may then contact employers listed for the information required.

Previous employer is out of business: You must provide a verifying reference who can affirm that employment.

Self-employment: You must provide a verifying reference who can affirm that employment.

Traffic Citations: Not all traffic citations will appear on your driving record(s). It is your responsibility to contact local or regional law enforcement to obtain information about citations.

References: Select personal and legal references that are willing to provide information to the Committee, and will do so in a timely manner.

I have read and understand the Arizona Supreme Court Rules of Admission to Practice Law.

Yes

I have read and understand these instructions.

Yes

General Information

Personal Information

Title

Full legal name, as it is shown on your government-issued driver's license, passport or comparable government-issued I.D.

David Garibotto
Nimer

Suffix

Professional Suffix

Gender

Male

NCBE Number

N10685417

Social Security Number

Note: The provision of your social security number is voluntary, pursuant to the Federal Privacy Act of 1974. Your social security number will be used for purposes of investigation and verification. You must notify in writing if you wish to restrict the use of your social security number.

608-64-
7380

Date of Birth

May 31, 1991

Place of Birth (City, State)

San Francisco, CA

Country of Birth

United States of America

Lawful Presence

Are you a citizen of the USA?

Yes

Please **upload** a legible copy of one of the following documents:

1. Birth certificate issued in a US state, territory, or possession;
2. Valid US passport identification page;
3. Valid driver's license issued by a US state within the past 10 years;
4. Valid non-license identification card issued by a US state within the past ten years;
5. I-9 form with photograph; or
6. US Certificate of Naturalization.

Other Names

Have you used or been known by other names or surnames?

No

Contact Information

Mailing Address Information

Address Type	residence
Address 1	1310 E Hermosa Dr
Address 2	
City	Tempe
State	Arizona
ZIP Code	85282
Country	United States of America
Contact Information	
Primary Phone Number	(650) 430-6255
Email	dgnimer@gmail.com
Alternate Email	

Residences

List in chronological order every residence whether permanent or temporary, including your current residence, in which you have lived during the past ten years, or since age 21, whichever is shorter. Exact address is not required, but city, state and zip code are required for each residence.

Date From	8-15-2013
Date To	5-15-2015
Address 1	1555 Broadway St
Address 2	224
City	Boulder
State	CO
ZIP Code	80302

Province

Country	United States of America
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Date From	5-15-2015
Date To	8-15-2015
Address 1	1032 Lincoln Pl
Address 2	
City	Boulder
State	CO
ZIP Code	80302

Province

Country

United States of America

Date From

8-15-2015

Date To

11-20-2017

Address 1

1700 17th St

Address 2

B1

City

Boulder

State

CO

ZIP Code

80302

Province

Country

United States of America

Date From

11-20-2017

Date To

3-1-2018

Address 1

1354 Pebble Dr

Address 2

City

San Carlos

State

CA

ZIP Code

94070

Province

Country

United States of America

Date From

3-1-2018

Date To

8-15-2018

Address 1

1700 17th St

Address 2

B10

City

Boulder

State

CO

ZIP Code

80302

Province

Country

United States of America

Date From

8-15-2018

Date To

5-10-2020

Address 1

311 Swift Ave

Address 2	102
City	Durham
State	NC
ZIP Code	27705

Province

Country

United States of America

Date From	5-10-2020
Date To	8-15-2020
Address 1	1354 Pebble Dr
Address 2	
City	San Carlos
State	CA
ZIP Code	94070

Province

Country

United States of America

Date From	8-15-2020
Date To	10-15-2024
Address 1	901 E Van Buren
Address 2	2092
City	Phoenix
State	AZ
ZIP Code	85006

Province

Country

United States of America

Date From	10-15-2024
Date To	4-4-2025
Address 1	1004 E Minnezona Ave
Address 2	
City	Phoenix
State	AZ
ZIP Code	85016

Province

Country	United States of America
Date From	4-4-2025
Date To	8-1-2025
Address 1	1028 E Orange St
Address 2	3063
City	Tempe
State	AZ
ZIP Code	85281
Province	
Country	United States of America
Date From	8-1-2025
Date To	8-28-2025
Address 1	7625 E Camelback Rd
Address 2	149A
City	Scottsdale
State	AZ
ZIP Code	85251
Province	
Country	United States of America
Date From	8-28-2025
Date To	present
Address 1	1310 E Hermosa Dr
Address 2	
City	Tempe
State	AZ
ZIP Code	85282
Province	
Country	United States of America

Academic History

College/University

List all colleges or universities, other than law schools, from which you received a degree.

Name of College/University	University of Colorado Boulder
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Degree	Bachelor of Arts
Date From	8-2013
Date To	7-2015
Name of College/University	Duke University
Degree	Master of Environmental Management
Date From	8-2018
Date To	5-2020

Law School

Please provide a list of all the law schools you attended (ABA and Non-ABA) regardless of whether you graduated or not.

Law School Name	Arizona State University Sandra Day O'Connor College of Law
Enrollment Status (e.g., attended, graduated)	Graduated
Degree	Juris Doctor
Date From	8-2020
Date To	5-2023

Academic Conduct

Have you ever at any time been dropped, suspended, expelled or disciplined by any school, college or university for any cause whatsoever, including scholastic deficiency? This question includes any action taken by a school, college or university, restricting in any way your conduct at that educational institution. Yes

If you are in possession of documentary evidence, please upload

Name of school	Dickinson College
Date of occurrence	9-1-2010
Detailed description of cause of discipline	In September (2010) of my freshman year of college at Dickinson, I smoked a marijuana cigarette with a group of people. One of them later apparently had a panic attack and called an ambulance, which got campus police involved, and he identified myself and my roommate as members of the group who had smoked, prompting campus police to come to our dorm room later that night, where they confiscated my roommate's remaining marijuana and/or paraphernalia.
Final disposition	I was placed on stayed suspension for one year. I did not have any further infractions for over a year. However, I continued to smoke marijuana discreetly, sadly blind to its pernicious danger.
Date of disposition	9-10-2010

Name of school	Dickinson College
Date of occurrence	10-1-2011
Detailed description of cause of discipline	In October (2011) of my sophomore year of college at Dickinson, a janitor discovered 0.8 grams of marijuana inside a pill bottle with my name on the prescription label in the dormitory bathroom (it must have fallen out of my pocket).

I was suspended for the remainder of the Fall semester and received Withdrawals in my courses. I resumed study at Dickinson in good standing the next semester (Spring 2012), which I maintained thereafter. This suspension was a turning point for me, and I significantly reduced my smoking after that, finally beginning to appreciate the harm it was doing to me.

Date of disposition 10-10-2011

Name of school Duke University

Date of occurrence 1-4-2019

Detailed description of cause of discipline

I earned a 2.35 GPA (C, A-, B, F, B+, P, P) in the first semester (Fall 2018) of my master's program, which was below the 2.7 threshold, so I was placed on academic probation. The principal cause was that I failed Applied Data Analytics. The Nicholas School was arduous and quantitatively based, and I was out of my depth. I learned a lot and am glad I went, but it was hard.

I earned 3.33 in Spring 2019, raising my cumulative GPA to 2.78, and was restored to good standing, which I maintained through graduation. It took everything I had to pass this course and complete the program. When I retook Applied Data Analytics, I attended the professor's and TAs' offices hours almost every single session (an extra approx. four hours per week) and still barely passed. I learned that when you need help you should humbly ask for it. I did, and I earned my master with my cohort.

Date of disposition 5-24-2019

Name of school Arizona State University College of Law

Date of occurrence 7-1-2021

Detailed description of cause of discipline

I earned a 2.31 GPA (B-, B, C+, F; B, B-, B-, C, C+) in my first year of law school (2020-21), which was just below the 2.33 threshold, so I was disqualified from the College, with the option to apply for reinstatement. Technically the primary reason was that I failed Legal Writing in the Fall semester. Underlying this, as I explained in my readmission statement, I was depressed at that time, for personal reasons, and I let those feelings negatively affect my work.

I followed the proffered readmission process—submitting a statement explaining my circumstances and asking for a second chance—and was granted reinstatement. I moved forward with my class, needing only to retake the failed Legal Writing and also Civil Procedure (where I had gotten a C+). I earned 3.31 (B, B+, A-, B, A-) the ensuing semester (Fall 2021), raising my cumulative GPA to 2.66, and was restored to good standing, which I maintained through graduation.

Date of disposition 8-17-2021

Have you ever at any time been questioned or accused with respect to cheating, plagiarism or honor code violation in the course of your schooling or elsewhere? No

Application/License History

Prior Attorney Licensing Applications

Have you ever **applied** for admission to any U.S. jurisdiction (state, territory, or D.C.) or foreign jurisdiction that DID NOT RESULT, OR HAS NOT RESULTED, in your admission to practice law in that jurisdiction? No

Attorney Licensing

Have you ever been **licensed** to practice law in any U.S. jurisdiction (state, territory, or D.C.) or foreign jurisdiction? No

Attorney Conduct

In connection with any application or license to practice law:

1. Were you ever the subject of a hearing or inquiry before an admitting authority?
2. Have you ever had any complaints or grievances (formal or informal) filed against you?
3. Have you ever been reprimanded, censured, suspended, disbarred or otherwise disqualified from admission?
4. Have you ever resigned in lieu of suspension, revocation, disqualification, or disbarment?
5. Have you ever been accused of or charged with fraud, perjury, misrepresentation, or false swearing in a judicial or administrative proceeding?

No

Unauthorized Practice of Law

Have you ever been accused of the unauthorized practice of law in any state or jurisdiction?

No

Other Professional Licensing

Have you ever applied for a license (even if the application was withdrawn or denied) or held a license for a business, trade, occupation, or profession, other than as an attorney (e.g., CPA, real estate agent, physician, nurse, patent practitioner, etc.)?

No

Other Professional Licensing Conduct

In connection with any business, trade or professional application or license:

1. Were you ever the subject of a hearing or inquiry before any board, committee, or licensing authority?
2. Have you ever had any charges, complaints or grievances (formal or informal) filed against you?
3. Have you ever at any time had a business, trade or professional license denied, suspended or revoked?
4. Have you ever resigned in lieu of suspension, revocation, disqualification, or disbarment?
5. Have you ever been accused of or charged with fraud, perjury, misrepresentation, or false swearing in a judicial or administrative proceeding?

No

Employment History

Employment History

List all employment and unemployment **in chronological order** for the last ten years or since age 21, whichever period is shorter. Do NOT leave any GAPS during that time frame..

NOTE:

Employment - In this context, employment encompasses all part-time and full-time employment, including self-employment, externships, internships (paid and unpaid), clerkships, military service, volunteer work, and temporary employment.

Unemployment - Provide a brief, but specific, description of your activities while unemployed (seeking employment, preparing for law school, attending school name, vacation, studying for bar exam).

Employment Verifying References - If an employer is no longer in operation, or you were self-employed or employed by a relative, provide the name and contact information of a verifying reference. Do not list yourself or a relative as a verifying reference.

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held

na

Start Date

8-2013

End Date

7-2015

Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.

→ na

Employer Name

na

Describe employment or Activity

⇒ Student (CU Boulder)

Supervisor/Verifying References Name na

Supervisor/Verifying References Address

Address 1 na

Address 2

City Boulder

State CO

ZIP Code 80302

Country United States of America

Telephone Number na

Supervisor/Verifying Reference Email na

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held Sales Manager

Start Date 7-2015

End Date 9-2016

Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.

⇒ Wanted a break from sales.

Employer Name Rocky Mountain Exteriors

Describe employment or Activity

⇒ Outside Sales for home paint jobs. Knocked doors to generate leads, returned to conduct estimate/book job.

Supervisor/Verifying References Name Matt Griffith

Supervisor/Verifying References Address

Address 1 1001 S Monaco St Pkwy

Address 2 250

City Denver

State CO

ZIP Code 80224

Country United States of America

Telephone Number (719) 469-0074

Supervisor/Verifying Reference Email matt.rmp@gmail.com

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held	Glazier
Start Date	9-2016
End Date	1-2017
Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.	
→ Not enough hours in the winter lull.	
Employer Name	Hillcrest Glass
Describe employment or Activity	
→ Installed glass in buildings.	
Supervisor/Verifying References Name	Michael Sklar
Supervisor/Verifying References Address	
Address 1	504 4th Ave
Address 2	
City	Longmont
State	CO
ZIP Code	80501
Country	United States of America
Telephone Number	(303) 931-1655
Supervisor/Verifying Reference Email	michael.sklar@outlook.com

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held	Shop hand
Start Date	1-2017
End Date	11-2017
Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.	
→ Moved out of state (home to study).	
Employer Name	Red Deer Ironworks
Describe employment or Activity	
→ Assembled pipeline parts.	
Supervisor/Verifying References Name	Steve Tozer
Supervisor/Verifying References Address	
Address 1	4289 Commerce Dr
Address 2	
City	Frederick

State	CO
ZIP Code	80504
Country	United States of America
Telephone Number	(970) 692-4835
Supervisor/Verifying Reference Email	stevendozer@gmail.com

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held	Server
Start Date	11-2017
End Date	2-2018
Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.	

→ Moved out of state (back to Colorado).

Employer Name	Patxi's Pizza
Describe employment or Activity	

→ Served patrons.

Supervisor/Verifying References Name	Unavailable (restaurant closed)
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Supervisor/Verifying References Address

Address 1	677 Laurel St
Address 2	Suite B
City	San Carlos
State	CA
ZIP Code	94070

Country United States of America

Telephone Number	Unavailable
Supervisor/Verifying Reference Email	Unavailable

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held	Store associate
Start Date	11-2017
End Date	3-2018
Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.	

→ Moved out of state (back to Colorado).

Employer Name	Men's Wearhouse
---------------	-----------------

Describe employment or Activity

⇒ Assist customers purchase dresswear.

Supervisor/Verifying References Name

Salwa

Supervisor/Verifying References Address

Address 1

1960 S El Camino Real

Address 2

City

San Mateo

State

CA

ZIP Code

94403

Country

United States of America

Telephone Number

(281) 776-7678

Supervisor/Verifying Reference Email

payrolltax@tailoredbrands.com

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held

Sales rep

Start Date

3-2018

End Date

8-2018

Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.

⇒ Moved out of state (to attend Duke).

Employer Name

Home Advisor, Inc. (now Angi)

Describe employment or Activity

⇒ Inside sales, for contractor leads. Called contractors to sign them up for the service.

Supervisor/Verifying References Name

Nathan Sands

Supervisor/Verifying References Address

Address 1

14023 Denver West Pkwy

Address 2

200

City

Golden

State

CO

ZIP Code

80401

Country

United States of America

Telephone Number

(303) 241-5889

Supervisor/Verifying Reference Email

ceo@angi.com

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held na

Start Date 8-2018

End Date 5-2019

Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.

→ na

Employer Name na

Describe employment or Activity

→ Student (Duke)

Supervisor/Verifying References Name na

Supervisor/Verifying References Address

Address 1 na

Address 2

City Durham

State NC

ZIP Code 27705

Country United States of America

Telephone Number na

Supervisor/Verifying Reference Email na

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held Research Analyst

Start Date 5-2019

End Date 8-2019

Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.

→ Summer internship ended.

Employer Name Blue Ridge Environmental Defense League

Describe employment or Activity

→ Performed research related to opposing construction of natural gas pipelines.

Supervisor/Verifying References Name Ann Rogers

Supervisor/Verifying References Address

Address 1 6347 Back Creek Rd

Address 2

City Boones Mill

State VA

ZIP Code 24065

Country United States of America

Telephone Number (540) 312-3104

Supervisor/Verifying Reference Email amelvin3@verizon.net

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held na

Start Date 8-2019

End Date 5-2020

Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.

⇒ na

Employer Name na

Describe employment or Activity

⇒ Student (Duke)

Supervisor/Verifying References Name na

Supervisor/Verifying References Address

Address 1 na

Address 2

City Durham

State NC

ZIP Code 27705

Country United States of America

Telephone Number na

Supervisor/Verifying Reference Email na

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held Research Analyst

Start Date 5-2020

End Date 8-2020

Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.

⇒ Summer internship ended.

Employer Name Blue Ridge Environmental Defense League

Describe employment or Activity

⇒ Performed research related to opposing construction of natural gas pipelines.

Supervisor/Verifying References Name Ann Rogers

Supervisor/Verifying References Address

Address 1 6347 Back Creek Rd

Address 2

City Boones Mill

State VA

ZIP Code 24065

Country United States of America

Telephone Number (540) 312-3104

Supervisor/Verifying Reference Email amelvin3@verizon.net

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held na

Start Date 8-2020

End Date 7-2021

Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.

⇒ na

Employer Name na

Describe employment or Activity

⇒ Student (Arizona State)

Supervisor/Verifying References Name na

Supervisor/Verifying References Address

Address 1 na

Address 2

City Phoenix

State AZ

ZIP Code 85006

Country United States of America

Telephone Number na

Supervisor/Verifying Reference Email

na

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held

Delivery driver

Start Date

7-2021

End Date

7-2021

Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.

→ Moved out of state (back to Arizona).

Employer Name

Blackjack Pizza

Describe employment or Activity

→ Delivered pizza orders to customers.

Supervisor/Verifying References Name

John

Supervisor/Verifying References Address

Address 1

3023 Walnut St

Address 2

City

Boulder

State

CO

ZIP Code

80301

Country

United States of America

Telephone Number

(303) 862-8942

Supervisor/Verifying Reference Email

na

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held

na

Start Date

7-2021

End Date

1-2022

Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.

→ na

Employer Name

na

Describe employment or Activity

→ Student (Arizona State)

Supervisor/Verifying References Name

na

Supervisor/Verifying References Address

Address 1	na
Address 2	
City	Phoenix
State	AZ
ZIP Code	85006
Country	United States of America
Telephone Number	na
Supervisor/Verifying Reference Email	na

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held	Intern
Start Date	1-2022
End Date	3-2022
Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.	

⇒ Semester internship ended.

Employer Name	City of Phoenix Public Defender's Office
Describe employment or Activity	

⇒ Assisted Public Defenders and contract attorneys with their cases, primarily by doing caselaw research.

Supervisor/Verifying References Name	Nathan Foundas
Supervisor/Verifying References Address	
Address 1	1417 E Granada Rd
Address 2	
City	Phoenix
State	AZ
ZIP Code	85006
Country	United States of America
Telephone Number	(480) 907-8877
Supervisor/Verifying Reference Email	nathan.foundas@phoenix.gov

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held	na
Start Date	3-2022
End Date	5-2022

Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.

⇒ na

Employer Name na

Describe employment or Activity

⇒ Student (Arizona State)

Supervisor/Verifying References Name na

Supervisor/Verifying References Address

Address 1 na

Address 2

City Phoenix

State AZ

ZIP Code 85006

Country United States of America

Telephone Number na

Supervisor/Verifying Reference Email na

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held Student Attorney

Start Date 5-2022

End Date 8-2022

Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.

⇒ Summer internship ended.

Employer Name Arizona State University Civil Litigation Clinic

Describe employment or Activity

⇒ Represented low-income clients in civil matters, handling all aspects of case management.

Supervisor/Verifying References Name Timothy J. Myers

Supervisor/Verifying References Address

Address 1 111 E Taylor St

Address 2

City Phoenix

State AZ

ZIP Code 85004

Country United States of America

Telephone Number	+44 7939 405975
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Supervisor/Verifying Reference Email	tmyers613@gmail.com
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List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held	Student
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Start Date	8-2022
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End Date	5-2024
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Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.

→ na

Employer Name	na
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Describe employment or Activity

→ Student (Arizona State); then studying for the Bar and job-hunting.

Supervisor/Verifying References Name	na
--------------------------------------	----

Supervisor/Verifying References Address

Address 1	na
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Address 2	
-----------	--

City	Phoenix
------	---------

State	AZ
-------	----

ZIP Code	85006
----------	-------

Country	United States of America
---------	--------------------------

Telephone Number	na
------------------	----

Supervisor/Verifying Reference Email	na
--------------------------------------	----

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held	Law Clerk
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Start Date	5-2024
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End Date	present
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Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.

→ na

Employer Name	The Brandon J Squires Law Firm
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Describe employment or Activity

→ Research law/write memos, write motions, interface with clients, negotiate with opposing counsel.

Supervisor/Verifying References Name	Brandon J. Squires
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Supervisor/Verifying References Address

Address 1	921 S Val Vista Dr
Address 2	138
City	Mesa
State	AZ
ZIP Code	85204
Country	United States of America
Telephone Number	(503) 949-1401
Supervisor/Verifying Reference Email	bsquires@squiresfirm.com

List all legal and law related employment (i.e. attorney, law clerk, paralegal, internships and externships [paid or unpaid] or other non-attorney positions).

Job Title or Position Held	LSAT Tutor
Start Date	5-2024
End Date	present
Reason for leaving employment. This is a mandatory answer. If this is your present employment, state so accordingly.	

→ na

Employer Name	Odyssey Test Preparation LLC
Describe employment or Activity	

→ Tutor candidates for the LSAT (or GRE).

Supervisor/Verifying References Name	Mariel Bautista
--------------------------------------	-----------------

Supervisor/Verifying References Address

Address 1	1603 Capitol Ave
Address 2	310-A298
City	Cheyenne
State	WY
ZIP Code	82001
Country	United States of America
Telephone Number	(646) 766-1177
Supervisor/Verifying Reference Email	odysseytestprep@gmail.com

Were you ever discharged or have you ever resigned from any employment listed in the above question after being told that your conduct or work was unsatisfactory? No

In the course of any employment since age 21 (regardless of current age), have you been accused or charged with dishonesty, misrepresentation, misappropriation, theft, fraud, moral turpitude, or the commission of a crime? Include any situation even if it did not result in discharge or resignation. No

Military Services**Military Service**

Select whether or not you have been a member of the armed forces of the United States, its reserve components or the National Guard. No

Legal Proceedings**Civil History**

Have you been a party to any type of civil action, including divorce, in the past ten years? No

Have you ever had a complaint filed against you in any civil or administrative forum, alleging fraud, deceit, misrepresentation, forgery, or legal malpractice? No

Has any surety on any bond on which you were the principal been required to pay any money on your behalf? No

Have you ever failed to comply with any court order including, but not limited to, not appearing for jury duty? No

Criminal History

Have you either as an adult or a juvenile, ever been served with a criminal summons, questioned, arrested, taken into custody, indicted, charged with, tried for, pleaded guilty to or been convicted of, or ever been the subject of an investigation concerning the violation of any law, statute, ordinance, rule, regulation, or canon? ATTENTION: You are required to disclose any prior conviction, arrest, or charge regardless of whether it expunged, vacated, dismissed, sealed, or not filed. Arizona revised Statue § 13-911 specifically permits a court to require this disclosure. In answering the questions, include all incidents, no matter how trivial or minor the infraction or whether guilty or not, whether you believe or were advised that you need not disclose any such instance. Your failure to report accurately will be the subject of investigation and questioning by the Committee on Character and Fitness. Yes

Complete Criminal Cases form including the following documents:

1. Police officer's narrative report from law enforcement agency;
2. Complaint, indictment, disposition, sentence (appeal, if any);and,
3. Proof of satisfaction of conditions imposed from the court of record.

Name in which criminal case filed David Garibotto Nimer

Date of incident (or time period involved) 9/17/2015

Location Boulder, CO

Title of complaint or indictment Uniform Summons & Complaint or Penalty Assessment

Criminal Number 150012043

Detailed description of incident

I was driving in Boulder, CO, on residential streets, and failed to stop at a stop sign. A police officer pulled me over, administered a roadside sobriety test, and arrested me for DUI. I blew 0.056 BAC. Fortunately, no person or property was harmed.

Name of law enforcement agency Boulder Police Department

Address 1 1805 33rd St

Address 2

City Boulder

State CO

ZIP Code	80301
Country	United States of America
Name of court	Boulder County Court
Address 1	1777 6th St
Address 2	
City	Boulder
State	CO
ZIP Code	80302
Country	United States of America
Date first heard	10-14-2015
Charge(s) at time of arrest	Driving While Ability Impaired (DWAII); Failure to Stop for Stop Sign
Charge(s) at time of trial	DWAI
Date of disposition	6-6-2016
Disposition	
I pled guilty to Driving While Ability Impaired (DWAII). This case was adjudicated concurrently with the DUI case (15T2992), and a global sentence was imposed. Please see Criminal Case Form 2 (15T2992) for full description of sentence and disposition.	
Attach copies of all of the following documents: From Law Enforcement Agency (Police): complete police report including officer's narrative report From Court of record: complaint, indictment, disposition, sentence (appeal, if any), and proof of satisfaction of conditions imposed.	
Name in which criminal case filed	David Garibotto Nimer
Date of incident (or time period involved)	11/14/2015
Location	Boulder, CO
Title of complaint or indictment	Uniform Summons & Complaint or Penalty Assessment
Criminal Number	150014751
Detailed description of incident I was driving in Boulder, CO, on residential streets, when a passenger tossed a beer can out of the rear window. A police officer pulled me over, administered a roadside sobriety test, and arrested me for DUI. I blew 0.128 BAC. Fortunately, no person or property was harmed.	
Name of law enforcement agency	Boulder Police Department
Address 1	1805 33rd St
Address 2	
City	Boulder
State	CO
ZIP Code	80301

Country	United States of America
Name of court	Boulder County Court
Address 1	1777 6th St
Address 2	
City	Boulder
State	CO
ZIP Code	80302
Country	United States of America
Date first heard	1-20-2016
Charge(s) at time of arrest	Driving Under the Influence of Alcohol (DUI); No Proof of Insurance
Charge(s) at time of trial	DUI
Date of disposition	6-16-2016
Disposition	I pled guilty to DUI. For this case and the DWAI case (15T2454) concurrently, I was sentenced to: -120 days of Work Release; -Total fines of \$1,682; -Level 2 alcohol classes; -Mothers Against Drunk Drivers; -48 hours of community service; -Substance monitoring; and -Two years of probation. I adhered to these terms perfectly, including spotless monitoring history, and was released from probation early on August 31, 2017.
Attach copies of all of the following documents:	
From Law Enforcement Agency (Police): complete police report including officer's narrative report	
From Court of record: complaint, indictment, disposition, sentence (appeal, if any), and proof of satisfaction of conditions imposed.	
Name in which criminal case filed	David Garibotto Nimer
Date of incident (or time period involved)	1/3/2016
Location	Boulder, CO
Title of complaint or indictment	Not available
Criminal Number	Not available
Detailed description of incident	I was driving in Boulder, CO, on residential streets, and turned left onto my street a little close to an oncoming car--a police car, who pulled me over. I admitted I had smoked marijuana earlier that evening, and was arrested for Driving Under the Influence of Drugs (DUID). My blood tested over the limit (exact level unavailable).
Name of law enforcement agency	Boulder Police Department
Address 1	1805 33rd St
Address 2	
City	Boulder
State	CO
ZIP Code	80301

Country	United States of America
Name of court	Boulder County Court
Address 1	1777 6th St
Address 2	
City	Boulder
State	CO
ZIP Code	80302
Country	United States of America
Date first heard	1-20-2016
Charge(s) at time of arrest	DUID
Charge(s) at time of trial	Dismissed
Date of disposition	6-16-2016
Disposition	This case (16T10) was adjudicated concurrently with the other two DUIs (15T2454, 15T2992). As part of the global resolution, 16T10 was dismissed outright. Afterward, I moved the court to seal this charge, and it did so.
Attach copies of all of the following documents: From Law Enforcement Agency (Police): complete police report including officer's narrative report From Court of record: complaint, indictment, disposition, sentence (appeal, if any), and proof of satisfaction of conditions imposed.	
Have you ever been convicted of a felony?	No

Traffic History

List every state where you have been licensed to drive during the last ten years (account for the entire ten years period). For each driver's license listed, provide a current certified copy of your driving record, even if that record shows no infractions. The record must be issued by the jurisdiction for the longest period of time offered. The record may not be an unofficial copy or from a third-party vendor.

Country	United States of America
State of Licensure	AZ
License Number	J4811609
Date Issued	11-17-2020
Expiration Date	11-17-2028
Status of Driver's License	Active

Country	United States of America
State of Licensure	NC
License Number	000041431363
Date Issued	4-8-2019

Expiration Date	5-31-2027
Status of Driver's License	Inactive
Country	United States of America
State of Licensure	CO
License Number	13-260-0591
Date Issued	4-11-2018
Expiration Date	5-31-2023
Status of Driver's License	Inactive
In the last ten years, have you received any traffic citations?	Yes
Date of incident (or time period involved)	11-15-2019
Location	
→ Abingdon, VA	
Title of complaint	Virginia Uniform Summons
Traffic Number	Summons# E00Q0005J6; E00Q0005J7
Detailed description of incident	
→ Speeding 15+ over the limit.	
Name of law enforcement agency	Washington County Sheriff
Address	20281 Rustic Ln
Suite	
City	Abingdon
State	VA
ZIP Code	24210
Name of court	Washington County General District Court (Traffic)
Address	191 E Main St
Suite	B
City	Abingdon
State	VA
ZIP Code	24210
Date first heard	
Charge(s) at time of citation/arrest	Speeding - Reckless (15+); Driving on Expired Registration
Charge(s) at time of trial	Speeding; Driving on Expired Registration
Date of disposition	7-21-2020

Disposition (including penalty, if any)

→ Pled guilty, paid fine of \$300 for speeding and \$30 fine for registration, plus court costs.

Date of incident (or time period involved)

4-10-2018

Location

→ Frederick, CO

Title of complaint

Municipal Court Citation

Traffic Number

23395

Detailed description of incident

→ Speeding 10-19 Over Posted Limit.

Name of law enforcement agency

Frederick Police Department

Address

333 Fifth St

Suite

City

Frederick

State

CO

ZIP Code

80530

Name of court

Frederick Municipal Court

Address

333 Fifth St

Suite

City

Frederick

State

CO

ZIP Code

80530

Date first heard

Charge(s) at time of citation/arrest

Speeding 10-19 Over Posted Limit

Charge(s) at time of trial

N/A

Date of disposition

3-13-2019

Disposition (including penalty, if any)

→ Paid total fines and costs of \$200.

Date of incident (or time period involved)

10-13-2017

Location

→ Longmont, CO

Title of complaint

Unavailable

Traffic Number

222440

Detailed description of incident

→ Failed to Obey Traffic Control Signal.

Name of law enforcement agency Longmont Public Safety Department

Address 225 Kimbark St

Suite

City Longmont

State CO

ZIP Code 80501

Name of court Longmont Municipal Court

Address 225 Kimbark St

Suite

City Longmont

State CO

ZIP Code 80501

Date first heard

Charge(s) at time of citation/arrest Signal Light

Charge(s) at time of trial

Date of disposition 2-5-2018

Disposition (including penalty, if any)

→ Guilty - default judgment entered. Paid fine of \$235.

Date of incident (or time period involved) 10-9-2015

Location

→ Erie, CO

Title of complaint Summons and Complaint

Traffic Number

Detailed description of incident

I was driving about 45 mph behind a car, following too closely, and took my eye off the road at the precise moment the car braked
→ suddenly (because two children up ahead pressed the crosswalk button). I looked up in time to brake but not to avoid rear-ending the car, at approx. 30 mph, causing significant vehicle damage but no significant injuries to any person.

Name of law enforcement agency Erie Police Department

Address 1000 Telleen Ave

Suite

City Erie

State CO

ZIP Code	80516
Name of court	Erie Municipal Court
Address	1000 Telleen Ave
Suite	
City	Erie
State	CO
ZIP Code	80516
Date first heard	
Charge(s) at time of citation/arrest	Failed to Yield Right of Way
Charge(s) at time of trial	
Date of disposition	12-7-2015
Disposition (including penalty, if any)	
→ Guilty plea; paid total fine and costs of \$230.	
Date of incident (or time period involved)	10-26-2014
Location	
→ Kit Carson County	
Title of complaint	Uniform Summons & Complaint or Penalty Assessment
Traffic Number	920744
Detailed description of incident	
→ Speeding 5-9 over limit.	
Name of law enforcement agency	Colorado State Patrol
Address	484 15th St
Suite	
City	Burlington
State	CO
ZIP Code	80807
Name of court	na
Address	
Suite	
City	
State	
ZIP Code	

Date first heard

Charge(s) at time of citation/arrest

Speeding 5-9 over limit

Charge(s) at time of trial

Date of disposition

11-13-2014

Disposition (including penalty, if any)

→ Pled guilty, paid citation of \$98.50.

Date of incident (or time period involved)

8-25-2013

Location

→ Golden, CO

Title of complaint

Unavailable

Traffic Number

GP15192

Detailed description of incident

→ Unavailable.

Name of law enforcement agency

Golden Police Department

Address

911 10th St

Suite

City

Golden

State

CO

ZIP Code

80401

Name of court

Golden Municipal Court

Address

911 10th Street

Suite

City

Golden

State

CO

ZIP Code

80401

Date first heard

Charge(s) at time of citation/arrest

Drove a (Defective/Unsafe) Vehicle

Charge(s) at time of trial

Date of disposition

10-3-2013

Disposition (including penalty, if any)

Unavailable. This ticket was more than ten years ago, and I do not recall the reason. I saw it notated on my Colorado Driver Record
 → so called the Golden court, but they had no record of it either, due to the date. Perhaps I had a bald tire, or a cracked windshield. I do not recall.

Financial History**Financial History**

Have you ever had a credit card revoked? Yes

Complete Debts History form

Type of Debt Credit Card

Account number 4465-4003-5292-3777

Date debt originated 4-2016

Original amount of debt (\$) \$1,356

Date of last payment 9-2020

Current balance (\$) 0

Name of original creditor Wells Fargo & Co.

Address 1 420 Montgomery St

Address 2

City San Francisco

State CA

ZIP Code 94163

Country United States of America

If different from above, current creditor

Address 1

Address 2

City

State

ZIP Code

Country

Detailed description of the circumstances surrounding this debt and the reason(s) for delinquency

I opened a credit account on April 17, 2016. I paid it properly each month for years but, due to financial distress, ultimately fell into arrears in 2020. I neglected to make a payment three consecutive months, saw a note that the account was set to be closed, and immediately paid the full outstanding balance (in two payments: \$1,188.32 on August 20, 2020, then \$1,356 on September 2), but the account was closed anyway, on July 7, 2020, due to the three consecutive missed payments. Please note: I have exerted stupendous effort on the phone and in branch with Wells Fargo seeking a document that specifically says this account was *closed* with a zero balance, but the bank cannot provide such, in this case. That seemed a bit unreasonable to me, but it is the fact of the matter. The attached "Paid in Full/Settlement 1" document shows my final statement, a zero balance, and that is the best I can do.

Present status of this debt Cleared and closed

Is there a balance remaining on this debt? No

Indicate whether you have

Paid the account in full

NOTE: You are required to upload official documentation of a zero (0) balance.

Do you have any debts, including student loans, which are more than 90 days past due? Respond affirmatively even if the debt is barred by the statute of limitations. No

Are you in default in any way in the performance or discharge of any duty or obligation imposed upon you by decree or order of any court, including, but not limited to, civil judgments, alimony, maintenance and support orders and decrees? No

Other than that listed above, have you ever failed to meet your financial obligations and/or defaulted on any debt or loan? No

Have you ever filed a petition under any Chapter of the Bankruptcy Code? No

Do you intend to file, or are you in the process of filing a petition for bankruptcy? No

References**Personal References**

- 1) Provide three references from reputable and responsible persons you have known at least five years.
- 2) If you are providing a home address, do not list business or firm name.
- 3) **Do not list any person who is related to you by blood or marriage, your present supervisor or any person listed elsewhere in this application.**

Years Known 22

Reference Name David Bessin

Reference Company or Firm OpenZeppelin

Address 1 na

Address 2

City Lisbon

State Out of Country

Zip Code na

Phone Number (650) 799-1073

Email Address bessin.david@gmail.com

Years Known 12

Reference Name Salvatore Demuro

Reference Company or Firm na

Address 1 14441 N 57th Pl

Address 2

City Scottsdale

State AZ

Zip Code 85254

Phone Number (480) 869-0049

Email Address	saldemuro@hotmail.com
Years Known	5
Reference Name	Robert Pearson
Reference Company or Firm	na
Address 1	6904 Cobblestone Ave.
Address 2	
City	Las Vegas
State	NV
Zip Code	89145
Phone Number	(702) 858-2675
Email Address	rpearson27@outlook.com

Professional References

- 1) Provide three references from attorneys who can provide information about your character.
- 2) If you do not know three attorneys, you may substitute law professors, judges, or law clients.
- 3) If you are providing a home address, do not list business or firm name.
- 4) **Do not list any person who is related to you by blood or marriage, your present supervisor or any person listed elsewhere in this application.**

Years Known	33
Reference Name	Daniel Spiro
Reference Company or Firm	U.S. Dept. of Justice
Address 1	9702 Corkran Ln
Address 2	
City	Bathesda
State	MD
Zip Code	20817
Phone Number	(301) 767-6642
Email Address	creedroom@danielspiro.com

Years Known	33
Reference Name	Peter Carson
Reference Company or Firm	Sheppard Mullin
Address 1	5540 Maxwelton Rd
Address 2	
City	Piedmont

State	CA
Zip Code	94618
Phone Number	(510) 220-0981
Email Address	peterhcarson@gmail.com
Years Known	33
Reference Name	Ken Kramer
Reference Company or Firm	Paradigm Counsel LLP
Address 1	4327 Miranda Ave.
Address 2	
City	Palo Alto
State	CA
Zip Code	94306
Phone Number	(650) 823-5494
Email Address	kendcramer@gmail.com

Self Disclosure**Self Disclosure**

Is there any other information, incident(s), or occurrence(s) which is not otherwise referred to in your response to this application which, in your opinion, may have a bearing, either directly or indirectly, positively or negatively, upon your ability to practice law actively and continuously? Yes

Please explain fully

Dear Arizona Attorney Admissions, With regard to the three DUIs from 2015, I want to be clear to the committee about two things. First, I am not proud of, and deeply regret, these decisions. Obviously, I displayed poor judgment. I'm very grateful that nobody was harmed in consequence. Second, I am not the same person today as I was then. These incidents took place shortly after graduating from college. I had started working, I felt quite successfully in an outside-sales role, and perhaps my pride in that turned to hubris. I also had sustained a TBI in a serious accident earlier in 2015, in which I was intubated, airlifted, and hospitalized for several days, and following which I dealt with trouble sleeping, headaches, dizziness, and other symptoms for some while. In hindsight, though it is absolutely no excuse for my driving choices, my judgment was also compromised. This sobering chapter was not the start to adulthood I'd anticipated. My life was essentially paused for two long years, while I absorbed the simple lesson: don't drink (or smoke) and drive. I have not done so since. I intervene when I see someone considering it. It also impressed upon me that actions have consequences. I'd messed up, and had to face the reality of complying with the terms of my sentence, and patiently learning to become a better, more mature person. Although I would prefer not to have had this experience, I do appreciate the lessons in accountability it taught me. I believe it will make me a better lawyer, both more compassionate, and more cognizant of my obligations and commitments as a member of the bar.